

Mangalam Cold Storage And Allied v. Ram Pal Singh Yadav

High Court of Judicature at Allahabad · Single Judge · 27 October 2021 · Contempt Application (Civil) No. 4782 of 2021 · **Prima facie contempt; three weeks to comply with Clause 6.5 order**

HEADNOTE

Contempt of a Clause 6.5 remittal. Finding a prima facie case that the Executive Engineer had not considered the consumer's representation as directed on 7 December 2020 in Writ-C No. 19791 of 2020, the High Court granted three further weeks to comply and disposed of the application with liberty to file afresh, without deciding the electricity bill or recovery.

FACTUAL SUMMARY

The applicants, a cold-storage consumer, had challenged a recovery certificate of 27 December 2019 and a recovery citation of 20 January 2020 for electricity dues, and sought a revised bill. On 7 December 2020 the writ court, without deciding merits, allowed them to represent to the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005, for decision within four weeks. They then moved civil contempt alleging wilful non-compliance.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

contempt of clause 6.5 representation order

HOLDING

Where a writ has been disposed of by directing the Executive Engineer to consider a consumer's representation under Clause 6.5, alleged non-compliance is actionable in contempt. Finding a prima facie case, the Court afforded three further weeks to comply and disposed of the application with liberty to file afresh, without deciding the underlying billing or recovery dispute. ¶ 1

PRINCIPLE TAGS

contempt-of-6.5-writ-does-not-redecide-bill

The Court found a prima facie case of contempt of the 7 December 2020 order directing Clause 6.5 consideration, granted three further weeks to comply, and did not redecide the bill or recovery. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECOVERY CERTIFICATE DATED 27.12.2019, RECOVERY CITATION DATED 20.01.2020, AND THE CLAIM TO A REVISED ELECTRICITY BILL

The underlying writ was disposed of without opinion on merits; this contempt likewise does not decide the dues. ¶ 1

NOT DECIDED — FINAL DETERMINATION OF CIVIL CONTEMPT IF NON-COMPLIANCE CONTINUES

Liberty reserved to move a fresh application if the Executive Engineer does not comply within the further three weeks. ¶ 1